

IN THE COURT OF SESSIONS JUDGE, PATIALA

Sessions Case No. 42 of 2025

State versus Ramesh Kumar

Judgment dated 15.01.2025

1. The accused Ramesh Kumar stands charged under Section 302 read with Section 34 of the Indian Penal Code for the murder of Suresh Chand. The question for determination is whether the prosecution has proved beyond reasonable doubt that the accused caused the death of the deceased in furtherance of common intention.
2. The case of the prosecution is that on the night of 13.11.2024 the deceased Suresh Chand was assaulted near the grain market. PW-1 Karan Singh, the brother of the deceased, deposed that he saw the accused fleeing from the spot at about 11 PM. PW-3 Dr. Meena Sharma, who conducted the post-mortem, opined that death was caused by two incised wounds on the chest inflicted by a sharp-edged weapon.

3. PW-5 the Investigating Officer stated that despite extensive search, no weapon was recovered from the accused or at his instance. PW-7 Mohan Lal, an independent witness, stated that the street light near the grain market was not functional on the night of occurrence. The accused in his statement denied the allegations and stated that he was at his village Dhablan on the night of the occurrence. DW-1 Gurmeet Singh supported the plea of alibi and stated that the accused attended a wedding at Dhablan.

4. Learned defence counsel for the accused argued that the identification by PW-1 in darkness is wholly unreliable. The learned Public Prosecutor argued that PW-1 knew the accused for years and could identify him even in poor light.

5. I find that the testimony of PW-1 is trustworthy and stands corroborated by the medical evidence. It is true that no weapon was recovered, but non-recovery of the weapon is not fatal when the ocular evidence is sound. The plea of alibi is not established as DW-1 is a close relative. In view of the above, the prosecution has proved its case beyond reasonable doubt. The accused Ramesh Kumar is hereby convicted under Section 302 read with Section 34 IPC and sentenced to imprisonment for life and a fine of Rs. 10,000.